

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 10
JUDICIAL OFFICER: JULIA CAMPINS
HEARING DATE: 09/03/2026

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (*Local Rule 3.43(2).*)

Note: In order to minimize the risk of miscommunication, parties are to provide an **EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED. DO NOT INCLUDE ARGUMENT IN THIS EMAIL – LIST THE TOPICS ONLY.** Dept. 10's email address is: dept10@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 10 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Courtroom Clerk's Calendar

1. 8:31 AM CASE NUMBER: C23-02357 CASE NAME: LISA ROSS VS. CHENETTE CARTER *FURTHER CASE MANAGEMENT CONFERENCE TRAILING MOTION FILED BY: <u>*TENTATIVE RULING:*</u>
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If either party challenges the tentative ruling, the CMC will proceed. If neither party challenges the tentative ruling, the CMC is continued to February 23, 2027, at 8:30 am in Department 10.

2. 9:00 AM CASE NUMBER: C25-03832 CASE NAME: JOYCE ESTEY VS. ALBERTO MALDONADO *FURTHER CASE MANAGEMENT CONFERENCE FILED BY: <u>*TENTATIVE RULING:*</u>
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CMC continued to November 2, 2026, at 8:30 a.m. Parties to file informative statements no later than 15 calendar days in advance.

3. 10:00 AM CASE NUMBER: MSC21-02258

CASE NAME: THOMAS VS. ECKERT

ISSUE CONFERENCE

FILED BY:

TENTATIVE RULING:

As between Plaintiff Thomas and Defendant Eckert, parties to appear.

Law & Motion

4. 9:00 AM CASE NUMBER: C23-01524

CASE NAME: DENNIS BULLARD VS. APTIVE ENVIRONMENTAL, LLC

***HEARING ON MOTION IN RE: FINAL APPROVAL OF SETTLEMENT**

FILED BY:

TENTATIVE RULING:

Plaintiffs Dennis Bullard and Kory Thornton move for final approval of their class action and PAGA settlement with defendant Aptive Environmental, LLC. The Court granted preliminary approval on April 9, 2026.

A. Background and Settlement Terms

The original complaint was filed by Plaintiff Bullard on June 21, 2023, in Contra Costa County, raising PAGA claims on behalf of non-exempt employees, alleging that defendant violated the Labor Code in various ways, including failure to pay minimum and overtime wages, failure to provide meal breaks, failure to provide proper wage statements, failure to reimburse necessary business expenses, and failure to pay all wages due on separation. Coordination Plaintiff Kory Thornton filed a similar complaint in Sacramento County. Coordination procedures began in December 2024. A Second Amended Complaint with both plaintiffs together was filed on August 3, 2026, following the grant of preliminary approval.

The settlement would create a gross settlement fund of \$3,750,000. The class representative payment to plaintiff would be \$10,000. Counsel's attorney's fees would be \$1,312,500 (35% of the settlement). Litigation costs are \$25,675.54. The settlement administrator (Phoenix) would cap its costs at \$21,500. PAGA penalties would be \$200,000, resulting in a payment of \$175,000 to the LWDA. The fund is non-reversionary. The net settlement amount for the class would therefore be \$2,170,324.46, resulting in an average payment of \$705.06 to participating class members.

The proposed settlement would certify a class of all current and former non-exempt employees of Aptive employed within the State of California from June 21, 2019, to October 1, 2025. (Settlement, Par. 1.5, 1.12.) The class is estimated at 3,068 members, although three have since opted out.

The settlement contains release language covering any claims "all claims . . . or causes of action . . . arising out of the claims that were alleged, or reasonably could have been alleged, based on the Class Period facts stated in the Actions and ascertained in the course of the Actions." (Settlement,